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Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
	2023-1360932 South Coast Villas Homeowners Association vs. Zimnitskaya	Plaintiff's Motion in Limine No. 1 is granted. Under Evidence Code section 777, nonparty witnesses shall remain outside the courtroom until called to testify and excused by the court. The order applies equally to both parties. Defendant, as a party, may remain in the courtroom. Plaintiff may designate one officer or employee who is entitled to remain under subdivision (c). Any request to exempt an additional witness from the exclusion order shall be raised with the court before that witness enters the courtroom. Plaintiff's Motion in Limine No. 2 seeks exclusion of Exhibits A through D and four witnesses as a discovery sanction. The motion is taken under submission or deferred as to the identified exhibits and witnesses and is otherwise denied to the extent it seeks a categorical order excluding every document or witness not previously produced or identified. The requested evidence does not present a uniform factual record. Some items may have existed and been responsive when defendant served her discovery responses; others allegedly were created only after plaintiff produced its Airbnb subpoena materials; and still others allegedly were already in plaintiff's possession. The court

	cannot determine whether an evidence sanction is appropriate without examining the particular discovery request, the timing and circumstances of the omission, willfulness, actual prejudice, and the availability of a lesser remedy. Before offering any challenged exhibit, defendant shall identify when she obtained it, whether it was in her possession or control when she responded to discovery, and when it was first disclosed to plaintiff. Plaintiff shall identify the particular discovery request allegedly violated and the resulting prejudice. Before calling any of the four challenged witnesses, defendant shall make an offer of proof identifying the proposed testimony, when she learned the witness possessed relevant information, and why the witness was not identified in discovery. The court will then determine whether the particular evidence should be excluded or whether another remedy is sufficient. This ruling does not affect plaintiff's ordinary objections based on relevance, authentication, foundation, hearsay, or other provisions of the Evidence Code. Defendant's Motion in Limine No. 1 is granted in part and otherwise denied without prejudice. Plaintiff represents that all exhibits it presently intends to offer, except Exhibit 53, were produced during discovery, and that the previously identified Exhibit 54 has been withdrawn. Based on that representation, the motion is moot as to plaintiff's other presently identified exhibits. Plaintiff shall not offer any additional exhibit that was not produced during discovery without first raising the matter with the court outside the evidentiary presentation. The motion is granted as to Exhibit 53 for purposes of the merits trial. Exhibit 53 consists of plaintiff's attorney invoices. During discovery, plaintiff withheld those invoices under claims of attorney-client privilege and work product and expressly represented in its second supplemental responses that the invoices need only be introduced in a posttrial motion for attorney fees and costs if plaintiff prevailed. Plaintiff may not withhold the invoices during discovery as privileged, represent that they will be used only in a posttrial fee proceeding, and then introduce selected portions at trial as affirmative evidence of damages. In addition, prevailing-party fees under Civil Code section 5975, subdivision (c), are ordinarily determined after judgment and are not necessary to adjudicate the underlying CC&R, nuisance, or equitable claims.
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Exhibit 53 is therefore excluded from the merits trial, without prejudice to plaintiff's right to submit appropriate billing evidence in a timely postjudgment motion for attorney fees and costs. The court makes no present determination concerning prevailing-party status, entitlement to fees, the amount or reasonableness of any fees, or any privilege waiver that may result from a later fee application.

Defendant's Motion in Limine No. 3 is granted in part. Plaintiff may not introduce an out-of-court statement for its truth unless plaintiff establishes a nonhearsay purpose or an applicable hearsay exception. Where a document contains multiple levels of hearsay, each level must independently satisfy the Evidence Code.

Plaintiff's Exhibits 25, 26, and 27—the declarations of Hope Karimi, Adrian Fonseca, and Tonya Frazier—are not admissible as business records under Evidence Code section 1271. The declarations were prepared for purposes of this litigation rather than as records made in the regular course of the HOA's business at or near the time of the recorded events. The declarants may testify to matters within their personal knowledge. The declarations may be used only if plaintiff establishes some other permissible evidentiary use or exception.

Defendant's own statements may be offered against her under Evidence Code section 1220. That exception does not eliminate a separate hearsay layer when another declarant recounts what defendant allegedly said.

As to Exhibit 48, the Airbnb custodian certification may establish authentication and the business-records foundation for qualifying Airbnb-generated records. It does not automatically render admissible embedded statements by guests, users, or other outside declarants. Plaintiff must establish an exception or relevant nonhearsay purpose for those statements.

On the present showing, the court rejects plaintiff's contention that Airbnb representatives are defendant's authorized agents under Evidence Code section 1222 merely because defendant allegedly listed property on Airbnb. Any assertion of authorized agency requires the foundation specified in section 1222.

The court will address particular statements in the Airbnb production when offered, consistent with these rulings. Plaintiff should identify the specific page and statement, its proposed evidentiary purpose, and the applicable exception before relying upon it for its truth.